



Data Processing Agreement

DPA · Civic Education Kenya (CEKA)

Document Type:	Data Processing Agreement (DPA)	Classification:	Confidential — Legal Record
Prepared By:	SG Founder, Civic Education Kenya (CEKA)	Governing Law:	Data Protection Act (2019), Republic of Kenya

Preamble

This Data Processing Agreement (“DPA”) is entered into by Civic Education Kenya (CEKA) and the undersigned Partner Organisation (together, “the Parties”). It supplements the CEKA Partnership Agreement and governs the processing of personal data exchanged in the course of the collaboration between the Parties. This DPA is required under Kenya’s Data Protection Act (2019).

1. Definitions

“**Personal Data**” means any information relating to an identified or identifiable natural person, as defined under the Data Protection Act (2019) of Kenya.

“**Data Controller**” means the party that determines the purposes and means of processing personal data.

“**Data Processor**” means the party that processes personal data on behalf of the Data Controller.

“**Processing**” means any operation performed on personal data, including collection, recording, storage, use, disclosure, or deletion.

“**Data Subject**” means the natural person to whom personal data relates.

2. Scope of Data Processing

The Parties acknowledge that the following categories of data may be processed in the course of their collaboration under the CEKA Partnership Agreement:

- Community or beneficiary engagement records, anonymised by default.
- Event registration data and civic forum participation records.
- Campaign reach and impact metrics tied to joint activities.
- Organisational contact data for administrative communication.

No sensitive personal data as defined under Part I of the Data Protection Act (2019) shall be processed without the explicit written consent of the individuals concerned.

3. Data Handling Obligations

Each Party agrees to:



- a. Process personal data only for the purposes expressly agreed in the Partnership Agreement and this DPA.
- b. Implement appropriate technical and organisational measures to protect personal data against unauthorised access, loss, alteration, or disclosure.
- c. Not transfer personal data to any third party without the prior written consent of the other Party.
- d. Notify the other Party without undue delay — and in any event within seventy-two (72) hours — upon becoming aware of a personal data breach.
- e. Retain personal data only for as long as necessary for the agreed purposes and securely delete or anonymise it upon request or at the end of the partnership term.
- f. Ensure that any personnel with access to personal data are bound by appropriate confidentiality obligations.

4. Data Subject Rights

Both Parties agree to assist each other in responding to requests from Data Subjects exercising their rights under the Data Protection Act (2019), including:

- a. Right of access to personal data held about them.
- b. Right to rectification of inaccurate personal data.
- c. Right to erasure of personal data where retention is no longer justified.
- d. Right to object to processing, including for direct marketing purposes.
- e. Right to data portability where technically feasible.

Responses to Data Subject requests shall be provided within the timelines prescribed by the Data Protection Act (2019).

5. Cross-Border Transfers

Neither Party shall transfer personal data outside Kenya without ensuring that the destination country provides an adequate level of data protection, or that appropriate safeguards are in place as required under the Data Protection Act (2019).

6. Term

This DPA remains in force for the duration of the CEKA Partnership Agreement and for as long as either Party holds personal data obtained during the collaboration. Upon termination of the Partnership Agreement, both Parties shall confirm in writing the deletion or return of all personal data within thirty (30) days.

7. Governing Law

This Agreement is governed by the Data Protection Act (2019) of Kenya and any regulations or guidelines issued thereunder by the Office of the Data Protection Commissioner of Kenya.

Signed for Civic Education Kenya (CEKA)

Signed for Partner Organisation



Name:

Title: Founder, Civic Education Kenya (CEKA)

Date:

Signature:

Name:

Title:

Organisation:

Date:

Signature:

This document is a legal record. It must be co-signed before any personal data is exchanged between the Parties. Retain a countersigned copy for your records.